

SENATE CHAMBER

STATE OF OKLAHOMA

DISPOSITION

☒ FLOOR AMENDMENT

No. 1

☐ COMMITTEE AMENDMENT

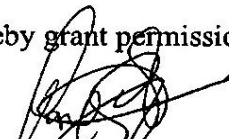
(Date)

I move to amend Senate Bill No. 1570 by substituting the attached floor substitute (Request #3814) for the title, enacting clause and entire body of the measure.

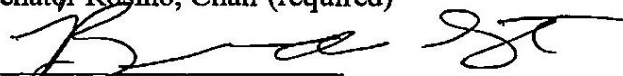
Submitted By:

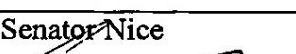

Senator Rosino

I hereby grant permission for the floor substitute to be adopted.


Senator Rosino, Chair (required)

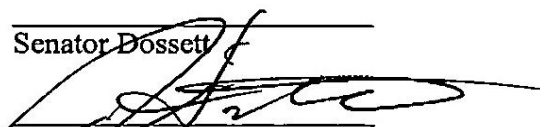

Senator McIntosh

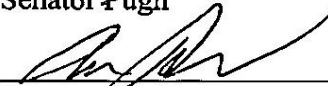

Senator Stanley


Senator Nice

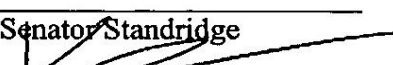

Senator Coleman

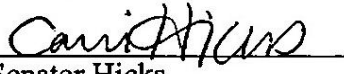

Senator Pugh

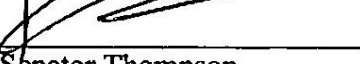

Senator Dossett


Senator Reinhardt


Senator Haste


Senator Standridge


Senator Hicks


Senator Thompson

Senator Paxton, President Pro Tempore

Senator Daniels, Majority Floor
Leader

Note: Health and Human Services Committee majority requires seven (7) members' signatures.

Rosino-DC-FS-SB1570

3/24/2026 2:46 PM

(Floor Amendments Only)

Date and Time Filed:

AC
3/24/26 3:06 PM

☐ Untimely

☐ Amendment Cycle Extended

☐ Secondary Amendment

STATE OF OKLAHOMA

2nd Session of the 60th Legislature (2026)

FLOOR SUBSTITUTE
FOR

SENATE BILL NO. 1570

By: Rosino of the Senate

and

Lawson of the House

FLOOR SUBSTITUTE

[children - Department of Child Safety and Well-being - transition plan - employees - administrative rules - Commissioner of Child Safety and Well-being - appointment and removal - powers and duties - Board of Child Safety and Well-being - membership - compensation - codification - effective date]

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 3-1-101 of Title 10A, unless there is created a duplication in numbering, reads as follows:

A. There is hereby created the Department of Child Safety and Well-being, which shall consist of the Commissioner of Child Safety and Well-being and such divisions, offices, positions, and advisory boards or committees as may be established by the Commissioner or by law.

1 B. 1. All applicable powers, duties, and functions of the
2 Child Welfare Services Division of the Department of Human Services
3 shall be fully transferred to the Department of Child Safety and
4 Well-being on July 1, 2027.

5 2. All applicable powers, duties, and functions of the Office
6 of Juvenile Affairs shall be fully transferred to the Department of
7 Child Safety and Well-being on July 1, 2027.

8 3. All applicable powers, duties, and functions of the Oklahoma
9 Commission on Children and Youth shall be fully transferred to the
10 Department of Child Safety and Well-being and the the Office of
11 Client Advocacy within the State Department of Health on July 1,
12 2027. Oversight and investigative functions of the Oklahoma
13 Commission on Children and Youth that necessitate an independent
14 oversight agency shall be transferred to the Office of Client
15 Advocacy. All other functions of the Oklahoma Commission on
16 Children and Youth including, but not limited to, programs and
17 services for children and youth shall be transferred to the
18 Department of Child Safety and Well-being.

19 C. The Governor may appoint, and fix the compensation of, an
20 interim Commissioner of Child Safety and Well-being to begin
21 development and implementation of the transition plan described in
22 subsection D of this section until the Board of Child Safety and
23 Well-being created under Section 3 of this act convenes and appoints
24 a permanent Commissioner. Until such time, the interim Commissioner

1 shall have the same powers and duties as the permanent Commissioner
2 as provided by Section 2 of this act.

3 D. Not later than November 1, 2026, the Commissioner of Child
4 Safety and Well-being and the Advocate General of the Office of
5 Client Advocacy, in collaboration with the Director of Human
6 Services, the Executive Director of the Office of Juvenile Affairs,
7 and the Director of the Oklahoma Commission on Children and Youth,
8 shall develop and implement a plan for the orderly establishment of
9 the Department of Child Safety and Well-being, its transition from
10 the affected state agencies, and the division of the Oklahoma
11 Commission on Children and Youth between the Department of Child
12 Safety and Well-being and the Office of Client Advocacy. The plan
13 shall be published online and electronically submitted to the
14 Governor, the President Pro Tempore of the Senate, and the Speaker
15 of the House of Representatives. The plan shall:

16 1. Provide for, as applicable, the transfer of all property,
17 equipment, supplies, records, matters pending, assets, future
18 liabilities, fund balances, encumbrances, obligations, indebtedness,
19 and legal and contractual rights and responsibilities of the Child
20 Welfare Services Division of the Department of Human Services, the
21 Office of Juvenile Affairs, and the Oklahoma Commission on Children
22 and Youth;

23 2. Provide for, in accordance with subsection E of this
24 section, the transfer of employees from the Child Welfare Services

1 Division of the Department of Human Services, the Office of Juvenile
2 Affairs, and the Oklahoma Commission on Children and Youth;

3 3. Determine the allocation of resources between the newly
4 created Department of Child Safety and Well-being, the Office of
5 Client Advocacy, and the Department of Human Services;

6 4. Determine the allocation of functions where the performance
7 of services may be shared between the Department of Child Safety and
8 Well-being and the Department of Human Services, as practicable;

9 5. Determine whether any administrative support services or
10 office space can continue to be provided by the Department of Human
11 Services;

12 6. Delineate the allocation of functions and responsibilities
13 of the the Oklahoma Commission on Children and Youth between the
14 Department of Child Safety and Well-being and the Office of Client
15 Advocacy in accordance with paragraph 3 of subsection B of this
16 section;

17 7. Detail a strategy to improve the safety and well-being of
18 children in this state, especially children in foster care and other
19 vulnerable children, through alignment of programs and services for
20 children and enhanced care coordination. The strategy shall
21 emphasize prevention and shall include a child behavioral health
22 component; and
23
24

1 8. Identify other areas deemed relevant by the Commissioner and
2 make recommendations to achieve an orderly transition and ensure
3 continuity of services.

4 E. 1. All employees of the Child Welfare Services Division of
5 the Department of Human Services shall be transferred to the
6 Department of Child Safety and Well-being not later than July 1,
7 2027.

8 2. All employees of the Office of Juvenile Affairs shall be
9 transferred to the Department of Child Safety and Well-being not
10 later than July 1, 2027.

11 3. Each employee of the Oklahoma Commission on Children and
12 Youth shall, not later than July 1, 2027, be transferred to either
13 the Department of Child Safety and Well-being or the Office of
14 Client Advocacy, based upon the responsibilities of each employee
15 relative to the delineation of program areas provided in paragraph 3
16 of subsection B of this section.

17 4. No employee shall be transferred to the Department of Child
18 Safety and Well-being or the Office of Client Advocacy except on the
19 freely given written consent of the employee. Any employee who is
20 transferred shall not be required to accept a lesser grade or salary
21 than presently received. All employees shall retain leave, sick,
22 and annual time earned, and any retirement and longevity benefits
23 that have accrued during their tenure with the Department of Human
24 Services, the Office of Juvenile Affairs, or the Oklahoma Commission

1 on Children and Youth. The transfer of personnel between the state
2 agencies shall be coordinated with the Office of Management and
3 Enterprise Services.

4 F. 1. The Director of the Office of Management and Enterprise
5 Services shall coordinate the transfer of funds, allotments,
6 purchase orders, and outstanding financial obligations or
7 encumbrances as provided for in this section.

8 2. The Department of Human Services, the the Office of Juvenile
9 Affairs, and the Oklahoma Commission on Children and Youth may use
10 available funds for the transition initiative.

11 G. 1. On July 1, 2027, the administrative rules related to any
12 programs or services provided by the Department of Child Safety and
13 Well-being previously promulgated by the Director of Human Services,
14 the Board of Juvenile Affairs, or the Oklahoma Commission on
15 Children and Youth shall be transferred to and become a part of the
16 administrative rules of the Department of Child Safety and Well-
17 being. The Office of Administrative Rules in the Office of the
18 Secretary of State shall provide adequate notice in "The Oklahoma
19 Register" of the transferred rules and shall place the transferred
20 rules under the Oklahoma Administrative Code section of the
21 Department of Child Safety and Well-being. Beginning July 1, 2027,
22 any amendment, repeal, or addition to the transferred rules shall be
23 under the rulemaking authority of the Board of Child Safety and
24 Well-being.

1 2. On July 1, 2027, the administrative rules related to any
2 programs or services provided by the Office of Client Advocacy
3 previously promulgated by the Oklahoma Commission on Children and
4 Youth shall be transferred to and become a part of the
5 administrative rules of the State Department of Health. The Office
6 of Administrative Rules in the Office of the Secretary of State
7 shall provide adequate notice in "The Oklahoma Register" of the
8 transferred rules and shall place the transferred rules under the
9 Oklahoma Administrative Code section of the State Department of
10 Health. Beginning July 1, 2027, any amendment, repeal, or addition
11 to the transferred rules shall be under the rulemaking authority of
12 the State Commissioner of Health.

13 H. Upon completion of the transfers described in this section,
14 the Child Welfare Services Division of the Department of Human
15 Services, the Office of Juvenile Affairs, the Board of Juvenile
16 Affairs, and the the Oklahoma Commission on Children and Youth shall
17 be abolished.

18 SECTION 2. NEW LAW A new section of law to be codified
19 in the Oklahoma Statutes as Section 3-1-201 of Title 10A, unless
20 there is created a duplication in numbering, reads as follows:

21 A. The chief executive officer of the Department of Child
22 Safety and Well-being shall be the Commissioner of Child Safety and
23 Well-being, who shall act for the Department in all matters except
24 as may be otherwise provided by law.

1 B. The Commissioner shall be appointed by and shall serve at
2 the pleasure of the Board of Child Safety and Well-being established
3 under Section 3 of this act and may be removed or replaced without
4 cause.

5 C. The Commissioner shall have the power and duty to:

6 1. Administer the programs and services of the Department of
7 Child Safety and Well-being;

8 2. Establish internal policies and procedures of the Department
9 and recommend rules to the Board;

10 3. Pursuant to legislative authorization, employ, discharge,
11 appoint, or contract with, and fix the duties and compensation of,
12 such assistants, attorneys, law enforcement officers, probation
13 officers, psychologists, social workers, medical professionals,
14 child welfare specialists, administrative, clerical, technical, and
15 program staff, investigators, and such other personnel, either on a
16 full-time, part-time, fee or contractual basis, as in the judgment
17 and discretion of the Commissioner shall be deemed necessary in the
18 performance or carrying out of any of the purposes, objectives,
19 responsibilities, or statutory provisions relating to the
20 Department, or to assist the Commissioner in the performance of
21 official duties and functions;

22 4. Establish within the Department such divisions, offices,
23 positions, and advisory boards or committees as the Commissioner
24 deems necessary to carry out the functions of the Department;

1 5. Create the annual legislative budget request for the
2 Department to be approved by the Board;

3 6. Accept, use, and administer grants, allotments, funds,
4 appropriations, gifts, devises, bequests, and other property made or
5 offered to the Department; and

6 7. Exercise all incidental powers which are necessary and
7 proper to implement the purposes of the Department.

8 D. In the event of the Commissioner's temporary absence, the
9 Commissioner may delegate the exercise of such powers and duties to
10 a designee during such absence. In the event of a vacancy in the
11 position of Commissioner, the Board shall appoint a new
12 Commissioner. The Board may designate an interim or acting
13 Commissioner who is authorized to exercise such powers and duties
14 until a permanent Commissioner is employed.

15 SECTION 3. NEW LAW A new section of law to be codified
16 in the Oklahoma Statutes as Section 3-1-301 of Title 10A, unless
17 there is created a duplication in numbering, reads as follows:

18 A. There is hereby created the Board of Child Safety and Well-
19 being, which shall be the governing board of the Department of Child
20 Safety and Well-being established under Section 1 of this act. The
21 Board shall consist of the following nine (9) members, whose initial
22 appointments shall be made not later than November 1, 2026:

23 1. Five members appointed by the Governor:
24

- a. at least two of whom shall have professional experience in social work, child welfare, children's behavioral health, community-based youth services, juvenile justice, or criminal justice,
- b. at least one of whom shall have lived experience as a parent, foster parent, foster child, kinship caregiver, juvenile-justice-involved youth, or other relevant lived experience, and
- c. at least one of whom shall have professional experience in executive leadership or financial management of a large-scale business enterprise;

2. Two members appointed by the President Pro Tempore of the Senate:

- a. at least one of whom shall have professional experience in social work, child welfare, children's behavioral health, community-based youth services, juvenile justice, or criminal justice, and
- b. at least one of whom shall have professional experience in executive leadership or financial management of a large-scale business enterprise; and

3. Two members appointed by the Speaker of the House of Representatives:

- a. at least one of whom shall have professional experience in social work, child welfare, children's

- 1 behavioral health, community-based youth services,
2 juvenile justice, or criminal justice, and
3 b. at least one of whom shall have professional
4 experience in executive leadership or financial
5 management of a large-scale business enterprise.

6 The Commissioner of Child Safety and Well-being shall be an ex
7 officio member of the Board, but may vote only in case of a tie
8 vote.

9 B. 1. Each member of the Board shall serve at the pleasure of
10 his or her appointing authority and may be removed or replaced
11 without cause.

12 2. To be eligible for appointment to the Board, a person shall:

- 13 a. be a citizen of the United States,
14 b. be a resident and qualified elector of this state,
15 c. not have been convicted of a crime listed in
16 subsection D of Section 112.5 of Title 43 of the
17 Oklahoma Statutes, and
18 d. not have a direct financial interest in any matter
19 that comes before the Board or in any program,
20 service, or contract related to the Department.

21 3. Each member of the Board shall successfully complete an
22 Oklahoma State Bureau of Investigation name-based criminal history
23 records search.
24

1 C. 1. The Board shall elect a chair and vice chair from among
2 its members.

3 2. The Board shall hold meetings as necessary at a place and
4 time to be fixed by the Board. Special meetings may be called by
5 the chair or by five members of the Board by delivery of electronic
6 notice to each member of the Board.

7 3. A majority of members serving on the Board shall constitute
8 a quorum of the Board.

9 4. Members of the Board shall receive necessary travel expenses
10 according to the provisions of the State Travel Reimbursement Act,
11 but shall receive no other compensation. Travel expenses shall be
12 paid from funds available to the Department.

13 D. The Board shall have the power and duty to:

14 1. Appoint and fix the compensation of the Commissioner of
15 Child Safety and Well-being in accordance with Section 3601.2 of
16 Title 74 of the Oklahoma Statutes;

17 2. Promulgate rules as necessary to carry out the duties of the
18 Department;

19 3. Supervise the activities of the Department and assist the
20 Department in conducting periodic reviews and planning activities
21 related to the goals, objectives, priorities, and policies of the
22 Department;

23 4. Review and approve the annual legislative budget request of
24 the Department and monthly financial reports of the Department; and

1 5. Establish contracting procedures for the Department and
2 approve rates of payment for services provided by contract in
3 accordance with the Oklahoma Central Purchasing Act.

4 SECTION 4. This act shall become effective September 1, 2026.

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6 60-2-3814 DC 3/24/2026 3:38:22 PM

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